

PROFESSIONAL SERVICES AGREEMENT

THIS PROFESSIONAL SERVICES AGREEMENT (this “**Agreement**”) is made and entered into as of Oct 27, 2025 (the “**Effective Date**”), between **EIGENRISK, INC.**, a Delaware corporation, with principal offices at 24 Frank Lloyd Wright Drive, Suite L-4000 Ann Arbor, MI 48105, USA (“**Company**”) and **Siddharth Srivastava** residing at H No 27 , New Sector -E Aliganj, Lucknow (“**Consultant**”) (each a “**Party**” and collectively the “**Parties**”). Consultant will provide certain business services as further set forth herein; and

Company desires to have Consultant provide services upon the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual promises set forth herein, Company and Consultant hereby agree as follows:

1. Services and Scope of Work

- 1.1 Services. Consultant agrees to provide to Company consulting services (“**Consulting Services**”) as they are described on Statement of Work No. 1 attached hereto as Exhibit A and on such additional Statements of Work as are executed from time to time by both Parties to this Agreement (each an “**SOW**”). Each SOW shall contain a description of the projects, the deliverables, and documentation, if any, to be produced by Consultant (collectively, “**Deliverables**”), acceptance criteria for each Deliverable (as applicable), a schedule of performance, a schedule of payments, and rates. Any modifications or additions to the terms of the SOW shall be pursuant to a “**Change Order**” executed by both Parties.
- 1.2 Performance of Services. Consultant shall furnish all equipment and materials used to perform the Consulting Services, including but not limited to telephone lines, personal computers, and modems (except as provided in the SOW). Consultant shall ensure that Consultant, employees, and Assistants (defined in Section 2.1 below) comply with all applicable local, state, and federal laws and regulations in performing the Consulting Services and shall remain solely responsible for all employees and Assistants.
- 1.3 Other Work. Consultant has the right to perform services for others during the term of this Agreement as long as such other engagement or performance does not interfere in any way with the timely and professional performance of the Consulting Services to be performed hereunder or compromise Company’s Confidential Information (defined in Exhibit B, attached hereto and made a part hereof).

2. Consultant Relationship

- 2.1 Consultant Personnel. Consultant will appoint for each SOW a qualified member of its staff to act as project manager (the “**Consultant Project Manager**”), who shall act as liaison between Company and Consultant, reporting to the person appointed by Company (the “**Company Project Manager**”). Consultant shall be fully and solely responsible for the supervision and payment of Consultant’s employees and Assistants and for all work performed by Consultant’s employees and Assistants.
- 2.2 Independent Contractor; No Agency. Consultant is an independent contractor. Consultant shall not be deemed for any purpose to be an employee of Company. Neither Party is an agent,

representative or partner of the other Party. Neither Party shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability on behalf of the other Party. This Agreement shall not be interpreted or construed to create an employment relationship, an association, agency, joint venture or partnership between the Parties or to impose any liability attributable to such a relationship upon either Party.

- 2.3 No Benefits. As a material term of this Agreement, Consultant agrees that the compensation arrangement established under this Agreement represents Consultant's entire compensation for the performance of services hereunder. Consultant agrees that Consultant is not eligible for, and shall not participate in, any of Company's employee benefit plans or programs ("**Benefits Plans**"). If for any reason Consultant is deemed to be an employee of Company by any governmental agency, court, or other entity, Consultant hereby waives any right to, and agrees to neither seek nor accept, any benefits under the Benefits Plans.

3. Fees, Expenses, Records, and Taxes

- 3.1 Fees. All Fees shall be as set forth in each SOW. All Consulting Services to be performed on a time and materials basis shall be invoiced in arrears. Invoices shall be submitted in a form acceptable to Company, and Company reserves the right to require invoicing and payment through electronic means at any time upon prior written notice. Invoiced fees and expenses, except for any amounts disputed by Company, shall be payable by Company within thirty (30) days of Company's receipt of each invoice. Notwithstanding anything to the contrary contained herein, Company shall not be liable for any charges and/or expenses under any SOW in excess of any specified Maximum Dollar Amount (if any, and as defined in the related SOW).
- 3.2 Expenses. Each SOW will list the categories of reimbursable expenses, if any. Consultant shall invoice Company on a monthly basis for reimbursable expenses. No expenses will be reimbursed unless: (i) Company has given its prior written consent for any such expenses; (ii) the expenses have been detailed on a form acceptable to Company and submitted to the appropriate Company Project Manager for review and approval; and (iii) if requested by Company, the Consultant submits supporting documentation in addition to the approved expense form. Any travel expenses shall comply with Company's travel policy and Company may, at Company's sole discretion, require Consultant to make travel arrangements through a Company-approved travel agency.
- 3.3 Records; Audit Rights. Consultant shall maintain complete and accurate accounting records to substantiate Consultant's charges and Consultant shall retain such records for a period of twenty-four (24) months from the date of final payment under any SOW. Consultant will, upon reasonable prior written request by Company during the term and for twenty-four (24) months thereafter, allow Company or its representatives to audit such records to verify the accuracy of the amounts owed and charged pursuant to this Agreement; provided that (a) any such audit is conducted during normal business hours and in a manner designed to not unreasonably interfere with Consultant's ordinary business operations; (b) audits may not occur more frequently than once every twelve (12) months, unless a prior audit has revealed an overpayment in such twelve (12) month period. Consultant will cooperate with Company and its representatives in the conduct of such audit. If any audit reveals Consultant has overbilled Company, Consultant shall refund any overpayments together with interest on such overpayments at an annual rate of two percent (2%) over the prime rate of interest reported in The Wall Street Journal on the date on which such overpayment was made and Consultant will reimburse the Company for its reasonable out-of-pocket costs incurred

in conducting such audit. Company shall be granted full and complete access to Consultant's materials and locations, including without limitation all of Consultant's records, reports, files, facilities, premises, systems, documentation, data, software, and Confidential Information as they may pertain to the performance of Consultant's obligations hereunder.

- 3.4 Taxes. Consultant shall be responsible for determining the applicability of any transactional taxes that may be applicable to the performance of the Consulting Services and shall clearly and separately state any applicable taxes on Consultant's invoice to Company. Company shall not be liable for taxes based on Consultant's net income or conduct of business, or similarly-based taxes nor shall Company be responsible to Consultant, employees, Assistants, or any governing body for any payroll-related taxes including but not limited to, withholding or other taxes related to federal or state income tax, social security benefits, or unemployment compensation.

4. Acceptance of Services

If applicable, Consulting Services and Deliverables delivered by the Consultant shall be subject to acceptance by Company, subject to the provisions of the applicable SOW.

5. Term and Termination

- 5.1 Term. This Agreement shall commence on the Effective Date and shall continue until the later of (i) its termination in accordance with the provisions of this Agreement or any SOW, or (ii) satisfactory completion, and acceptance by Company, of the services provided for in all SOWs ("**Term**").
- 5.2 Termination For Breach. Either Party may terminate this Agreement at any time in the event of a material breach by the other Party that remains uncured after thirty (30) days' written notice thereof. Notwithstanding the forgoing or any provision herein to the contrary, either party may terminate this agreement for any reason or no reason immediately upon written notice to Consultant.
- 5.3 Termination for Bankruptcy/Insolvency. Either Party may terminate this Agreement immediately following written notice to the other Party if the other Party (i) ceases to do business in the normal course, (ii) becomes or is declared insolvent or bankrupt, (iii) is the subject of any proceeding related to its liquidation or insolvency (whether voluntary or involuntary), which is not dismissed within ninety (90) calendar days, or (iv) makes an assignment for the benefit of creditors.
- 5.4 Company Rights and Payment Upon Termination. If either Party terminates the Agreement, Company agrees to pay Consultant for all approved expenses incurred by Consultant up to the effective date of termination. In the event of termination of this Agreement or any SOW under Section 5.3 prior to the completion of the Consulting Services, Consultant shall refund Company any prepaid but unaccrued fees. Upon termination Company shall retain its rights in and to all Work (as defined in Exhibit B) and created for or provided to Company pursuant to this Agreement prior to the effective date of termination.

- 6. Terms and Conditions.** The terms and conditions set forth on Exhibit B attached hereto are hereby made a part of this Agreement.

[Signature Page Follows]

IN WITNESS WHEREOF, the Parties hereto, each acting under due and proper authority, have executed this Agreement effective as of the date first written above.

EIGENRISK, INC.

By: _____

Print Name: Deepak Badoni

Title: CEO

Date: October 27, 2025

CONSULTANT

Print Name: Siddharth Srivastava

Title: Consultant

Date: October 27, 2025

EXHIBIT A

STATEMENT OF WORK NO. 1 DATED AS OF OCT 27, 2025 TO AGREEMENT FOR PROFESSIONAL SERVICES

BETWEEN

EIGENRISK, INC. (“Company”) AND Siddharth Srivastava (“Consultant”)
DATED AS OF OCT 27, 2025 (the “Agreement”)

SCOPE OF WORK

1. Detailed description of project to be accomplished by Consultant:

CONSULTANT MAY UNDER NO CIRCUMSTANCES BIND COMPANY TO ANY LEGAL OBLIGATION, OR MAKE REPRESENTATIONS ON COMPANY’S BEHALF, UNLESS EXPRESSLY APPROVED AND AUTHORIZED.

Objective - Design, develop, and maintain high-performance, large-scale, cloud-based distributed applications. This engagement aims to enhance system performance, scalability, and reliability in alignment with the company’s technology roadmap.

2. Deliverables and documentation to be produced by Consultant:

- Design, build, and maintain efficient, reusable, and reliable C++ code.
- Implement performance and quality modules.
- Identify bottlenecks and bugs and develop effective solutions.
- Maintain high standards of code quality, organization, and automation.
- Collaborate with cross-functional teams for design reviews, testing, and release cycles.

3. Time for Performance/Delivery:

- Priority and timing to be agreed between Project Manager and Consultant (Monthly calendar)

4. Communications and Project Status:

- Reporting to Company Project Manager and as others as identified for specific items.

5. Payments:

- a. Remuneration : A monthly retainer at \$4,700/month(USD), an invoice to be raised by the consultant at the end of each month.
- b. Expenses: N/A
- c. Payment Schedule: Consultant to invoice Company monthly in arrears, payment due 30 days from invoice date

6. Company Project Manager(s): Surya Kiran Gullapalli

7. Term of this Statement of Work: Initial term shall be six-month period starting 27Oct, 2025 with the option to renew on terms acceptable to both the Consultant and EigenRisk Inc. The term shall automatically extend for additional six-month periods unless either Party provides written notice of its intent not to renew at least thirty (30) days prior to the expiry of the then-current term.
8. Additional Terms and Conditions: No other fees or expenses will be payable to Consultant under the terms of this Agreement.

EIGENRISK, INC.

By: _____

Print Name: Deepak Badoni

Title: CEO

Date: October 27, 2025

CONSULTANT

Print Name: Siddharth Srivastava

Title: Consultant

Date: October 27, 2025

EXHIBIT B

TERMS AND CONDITIONS

I. NO RIGHTS IN COMPANY PROPERTY/TRADEMARKS

(a) No Ownership or License. Nothing in this Agreement shall convey to Consultant any right, license, title, interest in or to the Work (as defined below), or any other Company intellectual property, property interest, license or right.

(b) No Right to Use Trademarks. Consultant shall have no right to use any Company trade name, trademark or service mark without the express written permission of Company.

II. CONFIDENTIALITY/PROPRIETARY RIGHTS

(a) Confidentiality. Consultant acknowledges that (1) Company, its Subsidiaries and Affiliates (each as defined in Section V(n) below), are the owners of valuable trade secrets, and other Confidential Information (as defined below) and license same from others, (2) in the performance of the Consulting Services, Consultant shall receive or become aware of such Confidential Information (as defined below), and (3) unauthorized disclosure of any Confidential Information (as defined below) would irreparably damage Company, its Subsidiaries and Affiliates, and/or their licensors and business partners.

For the purposes of this Agreement, “**Confidential Information**” shall mean any information relating to or disclosed in the course of the Agreement, which is or should be reasonably understood to be confidential or proprietary to Company, its Subsidiaries and Affiliates, and/or their licensors and business partners, including, but not limited to, the material terms of this Agreement, information concerning the relationship of Company, its Subsidiaries and Affiliates with third parties, technical processes and formulas, trade secrets, drawings, inventions, know-how, protocols, software programs, source codes, product designs, sales, cost and unpublished financial information, product and related business plans, methods of operation, technology assessments, database contents, forecasts, market assessments, strategies, projections, marketing data, and other non-public information owned by Company, its Subsidiaries and Affiliates, and/or licensors and business partners. The provisions of this Paragraph shall not apply to Confidential Information that has, through no fault of Consultant, become public knowledge or is independently developed by Consultant without access to or use of any Confidential Information.

(b) Restrictions. Consultant agrees that Confidential Information may only be used by Consultant as reasonably necessary to carry out the purposes of this Agreement and for the sole benefit of Company. Except as directed by Company or as permitted in this Paragraph, Consultant will not at any time during or after the term of this Agreement use Confidential Information for any other purpose or disclose any Confidential Information to any person (as such term is used in Section 13(d) of the Exchange Act) (“**Person**”), or permit any Person to examine and/or make copies of any reports or any documents prepared by Consultant or that come into Consultant’s possession or under Consultant’s control by reason of Consultant’s Consulting Services. Upon termination of this Agreement, Consultant will turn over to Company or destroy all documents, papers, and other matter in Consultant’s possession or under Consultant’s control that contain or relate to such Confidential Information, and provide written certification of such to Company. Notwithstanding the foregoing, Consultant may disclose Confidential Information to its employees and Assistants, when reasonably necessary to perform the Consulting Services; provided that, (i) such employees and Assistants agree in writing to be bound by the terms of this Agreement, and (ii) Consultant remains liable for any action by Assistants that, if performed by Consultant, would constitute a breach of this Agreement.

Consultant shall comply with Company's then-current privacy policy with respect to any and all information regarding Company customers that Consultant may obtain as a result of Consultant's performance under this Agreement.

(c) Injunctive Relief. Consultant acknowledges that misuse or disclosure of any Confidential Information by Consultant will give rise to irreparable injury (which is not adequately compensable in damages) to Company, its Subsidiaries and/or Affiliates or the owner of such information. Accordingly, Company or such other party may seek and obtain injunctive relief against the breach or threatened breach of the foregoing undertakings, in addition to any other legal remedies that may be available. Consultant acknowledges and agrees that the covenants contained herein are necessary for the protection of legitimate business interests of Company, its Subsidiaries and/or Affiliates, and are reasonable in scope and content.

(d) Proprietary Rights; Post-Termination Restrictions.

(1) Proprietary Rights. Except for Consultant's Pre-existing Materials (if any, as defined in the related SOW), all work, services, materials and Deliverables (as defined in Section 1.1 above) and other materials, provided, performed or created under any SOW ("**Work**"), including, but not limited to, (i) "look and feel" and other "brand" components, (ii) all materials, specifications, designs, writings, code, products, or other Deliverables (as defined in the related SOW) developed or prepared for Company by Consultant under such SOW (whether or not such SOW is completed) or provided or delivered to Company by Consultant, Assistants or their agents pursuant to this Agreement (collectively, "**Materials**") and (iii) any and all new or improved idea, design, concept, or other invention made or developed by Consultant, including but not limited to trade secrets, during the course of rendering the Consulting Services (as defined in Section 1.1 above) or developing or preparing the Materials (collectively, "**Invention**"), are the property of Company and all title and interest therein shall vest in Company and shall be deemed to be a "work made for hire" and made in the course of Consulting Services rendered hereunder. Consultant shall promptly and completely disclose to Company in writing any and all Inventions.

To the extent that title to any Works may not, by operation of law, vest in Company or such Works may not be considered "works made for hire", Consultant hereby irrevocably assigns to Company all right, title and interest in and to any Work, including but not limited to any and all Materials and Inventions. All Works, including but not limited to Materials and Inventions, shall belong exclusively to Company, and Company shall have the right to obtain and to hold in its own name, copyrights, registrations, patents, or such other protection as may be appropriate to the subject matter, and any extensions and renewals thereof. Consultant agrees to give Company and any person designated by Company such reasonable assistance, at Company's request and expense, as is required to perfect, secure and protect Company's intellectual property and other rights set forth in this Section, including but not limited to executing all documents necessary to perfect, secure and protect such rights.

Unless otherwise requested by Company, upon the completion of the services to be performed under each SOW or upon the earlier termination of such SOW, Consultant shall immediately turn over to Company all Work, including without limitation, any and all Materials and Inventions, developed pursuant to such SOW.

For purposes of this Agreement, "**Consultant's Pre-existing Materials**" means any materials, code, methodology, process, technique, or intellectual property right developed, licensed or otherwise acquired by Consultant independent of the Agreement and services to be rendered hereunder and which are not based upon and do not incorporate any Company Confidential Information or other intellectual property rights of Company. Consultant hereby grants a perpetual, irrevocable, fully paid-up, worldwide, non-exclusive, assignable, sublicensable license to use, reproduce, display, perform, distribute, and make derivative works of any of Consultant's Pre-existing Materials that are incorporated into the Work, in any medium hereby known or hereafter invented for any purpose.

(2) Post-Termination Restrictions. (A) Consultant agrees that during the Term and for a period of twelve (12) months immediately following the expiration of the Term or earlier termination of this engagement, whether with or without good reason, Consultant will not hire any employees, consultants, independent contractor or agent of Company and Consultant will not, either directly or indirectly, solicit, induce, recruit or encourage any of Company's employees, consultants, independent contractors or agents to leave their employment or terminate or diminish their relationship with Company or take away such employees, consultants, independent contractors or agents, or attempt to solicit, induce, recruit, encourage or take away employees, consultants, independent contractors or agents of Company, either for Consultant's own benefit or for any other person or entity. For purposes of this section, "independent contractors" shall include vendors, strategic partners and resellers. (B) Consultant further agrees that during the term of this engagement and for a period of six (6) months after the effective date of termination of Consultant's relationship with Company for whatever reason (regardless of the reason for termination), Consultant will not directly or indirectly without the express prior written consent of Company, (i) solicit, divert or take away, or attempt to divert or to take away (or assist any third party in doing any of the foregoing), the business or patronage of any Client, or (ii) solicit, induce or assist any third party in soliciting or inducing any other person or entity (including, without limitation, any third-party service provider, supplier or distributor) to terminate its relationship with Company or otherwise interfere with such relationship. For purposes of this Section, "Client" means any person or entity who, during the period of employment had been a client or customer of Company, any prospective client or customer of Company being solicited at the time of Consultant's termination or during the twelve (12) months immediately prior thereto, and any successor (by merger, acquisition or otherwise) to any such person or entity. Consultant further agrees that for a period of twelve (12) months immediately following termination of Consultant's relationship with Company for any reason, whether with or without good reason, Consultant will not contact any Client for any purpose relating to Company. (C) To the extent permissible under applicable law, Consultant agrees that for good consideration, the receipt and sufficiency of which is hereby acknowledged, during the period of Consultant's [engagement] by Company hereunder and for a period of six (6) months immediately following the later of expiration of the Term or other termination of Consultant's relationship with Company for whatever reason, Consultant will not, directly or indirectly, within the Restricted Area, become employed by, engage in business with, serve as an agent or consultant to, or become a partner, member, principal, stockholder or other beneficial owner (other than a holder of less than 1% of the outstanding voting shares of any publicly held Company) of, any person or entity, that (i) has or intends to develop, build, own, acquire, finance, invest in, organize, manage, lease or operate a line of business reasonably similar to that operated by Company, or (ii) has or intends to develop, own, build, finance, acquire, invest in, lease, organize, manage or operate a business that competes with that aspect of Company's business in which Consultant were engaged by Company, or which, to Consultant's knowledge, Company currently engages or intends to engage in the twelve (12) months subsequent to the expiration of the Term, or (iii) performs work in connection with the conception, development, creation, implementation, licensing or sale of a line of business reasonably similar to that operated by the Company, or (iv) is a customer, or is engaged in discussions to become a customer of the Company at the time of expiration of the Term. "Restricted Area" is any place where Company is doing business during the Term or where, to Consultant's knowledge Company intends to engage in business within twelve (12) months of the termination of the Term. Consultant expressly acknowledge that the duration, geographic breath and scope of this non-competition restriction is appropriate in light of the highly competitive nature of Company's business, Company's business at present and its future business plans, and that the compensation Consultant will receive from Company and access to information provided by Company are granted to Consultant solely for the purpose of providing Company with unique proprietary products relating to its current and prospective business operations, and that Company will lose all benefits of this Agreement and would place its competitive position in jeopardy were it not for Consultant's agreement and adherence to this non-competition restriction. Notwithstanding the foregoing, nothing shall prohibit Consultant, upon termination of the Term, from becoming an employee, owner, independent contractor, or partner of or in a "conventional" insurance company or risk management consultant, so long as the "conventional" insurance company or risk management consultant does not provide a product or

service reasonably similar to that provided by the Company , and provided that no Confidential Information is used or disclosed.

For the avoidance of doubt, all references in this Section II.(d) to Company shall include each of Company's Subsidiaries and Affiliates, now or hereafter existing.

III. REPRESENTATIONS AND WARRANTIES

- (a) **Representations and Warranties**. Consultant represents and warrants that: (i) Consultant has or shall have the proper skill, training, and background so as to be able to perform in a competent and professional manner and that all work will be performed in accordance with prevailing industry standards; (ii) Company shall receive free, good and clear title to all Work which may be developed by Consultant under this Agreement or which is provided or delivered to Company by Consultant or Consultant's Assistants, agents or representatives pursuant to this Agreement, including without limitation the Materials and Inventions, which title shall be free and clear of any and all liens, encumbrances, claims or litigation, whether pending or threatened; (iii) no Work, Deliverable or other Materials delivered by Consultant to Company hereunder, including without limitation Materials and Inventions, shall infringe on or violate (x) any copyright, trademark, patent, any music performance or other music related right, (y) any other proprietary or other right of any third party, including but not limited to any third party right to privacy, or (z) any applicable law or regulation; (iv) no Work, Deliverable or other Materials delivered by Consultant to Company hereunder, including without limitation, Materials and Inventions, shall contain any scandalous, libelous or unlawful matter or material; and (v) any software code created by Consultant and delivered to Company shall not (x) contain any viruses, malicious code, trojan horses, lock-out, metering or disabling devices, as such terms are understood in the computer industry, nor (y) incorporate, contain, bundle or distribute any open source or public software in a manner that might require disclosure of the software code delivered to Company.

Each Party represents and warrants to the other Party that: (i) such Party has the full corporate (or individual, as the case may be) right, power and authority to enter into this Agreement, to grant the licenses granted hereunder and to perform the acts required of it hereunder; (ii) the execution of this Agreement by such Party, and the performance by such Party of its obligations and duties hereunder, do not and will not violate any agreement to which such Party is a party or by which it is otherwise bound; (iii) when executed and delivered by such Party, this Agreement will constitute the legal, valid and binding obligation of such Party, enforceable against such Party in accordance with its terms; and (iv) such Party acknowledges that the other Party makes no representations, warranties or agreements related to the subject matter hereof which are not expressly provided for in this Agreement.

IV. INDEMNITY

- (a) **Consultant Indemnity**. Consultant shall defend, indemnify and hold harmless Company, its officers, directors, agents, affiliates, distributors, franchisees and employees from any and all loss and third party claims, demands, liabilities, costs or expenses, including without limitation reasonable attorneys' fees and expenses ("**Liabilities**") resulting from (i) actual or alleged infringement of any patent, copyright, or other property right (including, but not limited to, misappropriation of trade secrets) based on any software, program, service and or other materials furnished to Company by Consultant, (ii) Consultant's payment or nonpayment of compensation or salary asserted by an employee or Assistant of Consultant, (iii) any claim that Consultant stands in any relationship with Company other than as an independent contractor, including a claim that Consultant has failed to maintain its independent-contractor status, and (iv) Consultant's material breach of any obligation, duty, representation or warranty contained in this Agreement or in any SOW.

(b) Company Indemnity. Company agrees to defend, indemnify and hold Consultant harmless against any loss, cost or expense (including reasonable attorney's fees) sustained or incurred by Consultant a result of any claim, suit or proceeding made, brought or threatened by a third-party, arising out of any representations made by Consultant on behalf of Company in any materials prepared or public relations efforts undertaken, where the substance of such representations was provided by Company or authorized by Company, except in instances of willful misconduct, gross negligence or fraud.

V. GENERAL

(a) Excuse. Neither Party shall be liable for, or be considered in breach of or default under this Agreement on account of, any delay or failure to perform as required by this Agreement as a result of any causes or conditions which are beyond such Party's reasonable control and which such Party is unable to overcome by the exercise of reasonable diligence.

(b) Notice. Any notice, approval, request, authorization, direction or other communication under this Agreement will be given in writing and will be deemed to have been delivered and given for all purposes (i) on the delivery date if delivered by confirmed facsimile; (ii) on the delivery date if delivered personally to the Party to whom the same is directed; (iii) one business day after deposit with a commercial overnight carrier, with written verification of receipt; or (iv) five business days after the mailing date, whether or not actually received, if sent by U.S. mail, return receipt requested, postage and charges prepaid, or any other means of rapid mail delivery for which a receipt is available. In the case of Company, such notice will be provided to the Company Project Manager at the address of Company hereinabove first written. In the case of Consultant, except as otherwise specified herein, the notice address shall be the address for Consultant hereinabove first written, with the other relevant notice information, including the recipient for notice and, as applicable, such recipient's fax number to be as reasonably identified by Company.

(c) No Waiver. No waiver under this Agreement shall be valid or binding unless set forth in writing and duly executed by the Party against whom enforcement of such waiver is sought. The failure of either Party to insist upon or enforce strict performance by the other Party of any provision of this Agreement or to exercise any right under this Agreement shall not be construed as a waiver or relinquishment to any extent of such Party's right to assert or rely upon any such provision or right in that or any other instance; rather, the same shall be and remain in full force and effect.

(d) Entire Agreement. This Agreement sets forth the entire agreement and supersedes any and all prior agreements of the Parties with respect to the transactions set forth herein. Neither Party shall be bound by, and each Party specifically objects to, any term, condition or other provision which is different from or in addition to the provisions of this Agreement (whether or not it would materially alter this Agreement) and which is proffered by the other Party in any correspondence or other document, unless the Party to be bound thereby specifically agrees to such provision in writing.

(e) Amendment. No change, amendment or modification of any provision of this Agreement shall be valid unless set forth in a written instrument signed by the Party subject to enforcement of such amendment.

(f) Assignment. Consultant shall not assign this Agreement or any right, interest or benefit under this Agreement, nor delegate any of its duties or obligations hereunder, without the prior written consent of Company, and any attempted assignment or delegation shall be null, void, and of no effect. Subject to the foregoing, this Agreement shall be fully binding upon, inure to the benefit of and be enforceable by the Parties hereto and their respective successors and assigns.

(g) Subcontract. No work or services to be performed by Consultant hereunder shall be subcontracted to or performed on behalf of Consultant by any third party, except upon the prior written consent of Company. In all cases where Company authorizes work or services to be performed by any third party on a subcontract basis, Consultant shall be responsible for ensuring that the subcontractor is bound by and complies with the terms of this Agreement, and provide written evidence of the subcontractor's agreement to such effect. Consultant shall remain liable for any work or services performed by third parties as if such work or services had been performed by Consultant

(h) Construction; Severability. In the event that any provision of this Agreement conflicts with the law under which this Agreement is to be construed or if any such provision is held invalid by a court with jurisdiction over the Parties to this Agreement, (i) such provision shall be deemed to be restated to reflect as nearly as possible the original intentions of the Parties in accordance with applicable law, and (ii) the remaining terms, provisions, covenants and restrictions of this Agreement shall remain in full force and effect.

(i) Applicable Law; Jurisdiction; Jury Trial Waiver. The laws of the State of Delaware shall govern the interpretation, validity, administration, enforcement and performance of the terms of this Agreement regardless of the law that might be applied under the principles of conflict of laws. Each party irrevocably consents and submits to the exclusive jurisdiction of (a) the United States District Court for the Northern District of Ohio located in Lucas County, Ohio and (b) the Lucas County, Ohio Common Pleas Court for the purposes of any suit, action or other proceeding arising out of this Agreement. The parties hereby waive any and all rights to a trial by jury.

(j) Export Controls. Consultant shall provide all technical and operational information necessary for Company to determine the extent to which Work produced by Consultant may be subject to any legal requirements with respect to exportation.

(k) Publicity. Consultant agrees that it will not, without prior written consent of Company, use in advertising, publicity, or otherwise the name of Company, or refer to the existence of this Agreement in press releases, advertising, or materials distributed to prospective customers.

(l) Limitations. EXCEPT IN CONNECTION WITH BREACH OF THE CONFIDENTIALITY AND PROPRIETARY RIGHTS PROVISIONS HEREIN AND/OR OBLIGATIONS ARISING UNDER THE INDEMNIFICATION PURSUANT TO SECTION IV HEREOF, NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL OR EXEMPLARY DAMAGES (EVEN IF THAT PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES), ARISING FROM BREACH OF THE AGREEMENT, OR ARISING FROM ANY OTHER PROVISION OF THE AGREEMENT, SUCH AS, BUT NOT LIMITED TO, LOSS OF REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS (COLLECTIVELY, "**DISCLAIMED DAMAGES**"), EXCEPT IN INSTANCES OF WILLFUL MISCONDUCT, GROSS NEGLIGENCE AND FRAUD.

(m) Headings; Interpretations. The captions and headings used in this Agreement are inserted for convenience only and shall not affect the meaning or interpretation of this Agreement. This Agreement shall be construed fairly according to its terms, without regard to the drafter of any provision hereof.

(n) Subsidiaries and Affiliates. As used in this Agreement, "**Subsidiaries**" means any majority owned subsidiary of Company. **Affiliate** shall mean an entity controlling or under common control with Company. Company's Subsidiaries and Affiliates shall be provided services from Consultant under this Agreement. By executing any Statement of Work hereto, such Affiliate and Consultant will bind themselves to the terms of this Agreement with respect to such Statement of Work.

(o) Counterparts; Facsimile. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same document. Delivery of an executed signature page to this Agreement by facsimile shall be effective to the same extent as if such Party had delivered a manually executed counterpart.

(p) Surviving Sections. Sections 2.3 and 3.3 hereinabove, and this Exhibit B shall survive termination of this Agreement.

(q) Order of Precedence. In the event of any conflict between the terms of this Agreement and the terms set forth in an SOW, the terms of the SOW shall govern.